SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA

Department 6

Honorable Evette D. Pennypacker, Presiding

David Criswell, Courtroom Clerk

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2160

September 4, 2025

9:00 and 9:01 A.M.

RECORDING COURT PROCEEDINGS IS PROHIBITED

ORAL ARGUMENT

Before 4:00 PM today you must notify the:

(1) Court by calling (408) 808-6856 and

(2) Other side by phone or email that you will appear at the hearing to contest the tentative

If you fail to so notify the court or opposing side, the Court will not hear argument, and the tentative ruling will be adopted. (California Rule of Court 3.1308(a)(1) and Local Rule 8.E.)

REMOTE APPEARANCES

Phone only appearances are PROHIBITED. In-person appearances are preferred.

For necessary virtual appearances, you **must use video** and follow **Civil Local Rule 5**.

To access the courtroom, click or copy and paste this link into your internet browser and scroll to Department 6: https://www.scscourt.org/general_info/ra_teams/video_hearings_teams.shtml

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:01 1	16CV301771	CSNK Working Capital Finance Corp. vs Define Mobility LP et al	The Court did not locate a proof of service showing Rashinder Singh aka Rashminder Singh aka Rashi Singh was served with notice of this debtor's examination. If judge creditor was served, the judgment creditor is ordered to file the proof of service. If service was not effected, this matter will be taken off calendar.
9:01 2	16CV301771	CSNK Working Capital Finance Corp. vs Define Mobility LP et al	The Court did not locate a proof of service showing Jasit Singh aka Jesse Singh aka Jas Singh was served with notice of this debtor's examination. If judge creditor was served, the judgment creditor is ordered to file the proof of service. If service was not effected, this matter will be taken off calendar.
9:01 3	20CV368411	P.W. STEPHENS ENVIRONMENTAL, INC. vs RANDALL SPRINGER	The parties are ordered to appear for the examination of RANDALL SPRINGER, who was personally served with notice of this examination on July 22, 2025.
9:00 1-2	24CV453156	JAVIER LEYVA et al vs GENERAL MOTORS, LLC.	First amended complaint filed; demurrer and motion to strike off calendar.
9:00 3	23CV414972	David Rubin vs BluSky Restoration Contractors, LLC et al	Pursuant to the joint request of the parties, this motion is continued to October 28, 2025 at 9 a.m. in Department 6.
9:00 4-5	23CV423808	ARCHON DESIGN SOLUTIONS, INC. vs GLOBAL SEMICONDUCTOR ALLIANCE	Please see line 4 for tentative rulings regarding the court's OSC regarding consolidation, Plaintiff's motion to compel, and Defendant's motion to compel. Court will prepare the formal order. The parties are ordered to appear with a proposed new trial date for the consolidated action. The Court will set the earliest trial date the parties agree to for the consolidated actions, as the January 12, 2026 trial date is no longer tenable given Plaintiff's new action.
9:00 6	24CV443308	WELLS FARGO BANK, N.A. vs Annie Kim	This matter originally came on for hearing on June 26, 2025. At Plaintiff's request, the Court did not adopt its tentative ruling and instead continued the hearing to September 4, 2025 at 9 a.m. in department 6. There is no indication in the record that the case has been resolved. Accordingly, Plaintiff's motion to deem matters in requests for admission admitted is GRANTED. See line 6 for complete ruling. Court will prepare the formal order.
9:00 7	24CV443609	BERKSHIRE HATHAWAY HOMESTATE COMPANIES, vs NIKNAM NICKRAVESH et al	Defendants' motion to compel and for sanctions is DENIED. See line 7 for complete ruling. The Court will prepare the formal order.
9:00 8	24CV444162	TECH KY vs JESUS HERNANDEZ et al	Plaintiff's motion to compel responses to form interrogatories (set one) and for sanctions is GRANTED. See line 8 for complete ruling. Court will prepare formal order.
9:00 9	24CV453728	ANTHONY FLAMINIANO vs MERCEDES-BENZ USA, LLC et al	This matter is continued to October 9, 2025 at 9 a.m. in Department 6 to be heard with four other pending motions to compel.

9:00 10	24CV454785	American Express National Bank vs Myrna Milano	Defendant's motion to set aside default and default judgment is DENIED. See line 10 for complete ruling. Court will prepare the formal order. The parties are ordered to appear at the hearing for argument.
9:00 11	24CV454855	DISH WIRELESS L.L.C. vs ADVANCED WIRELESS & LOGISTICS	DISH Wireless LLC's motion for attorneys' fees is GRANTED. See line 11 for complete ruling. Court will prepare formal order.
9:00 12	25CV460115	Peggy Davis vs CIRBY HOLDINGS, LLC.	Defendant's petition to compel arbitration is GRANTED. See line 12 for complete ruling. Court will prepare formal order. The November 26, 2025 case management conference is VACATED. A status conference regarding the arbitration is set for March 26, 2026 at 10:00 a.m. in Department 6.

Line 4

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

ARCHON DESIGN SOLUTIONS, INC., Plaintiff, v. GLOBAL SEMICONDUCTOR ALLIANCE, J. SHELTON ASSOCIATES, INC., and JODI SHELTON Defendants.	Case No. 23CV423808 Related Case No. 25CV470109 **ORDER REGARDING CONSOLIDATION AND MOTIONS TO COMPEL**
GLOBAL SEMICONDUCTOR ALLIANCE, Cross-Complainant, v. ARCHON DESIGN SOLUTIONS, INC., ATHANASSIOS "TOM" KATSIOULAS, and DOES 1-20. Cross-Defendants.	

The Court's order to appear and show cause why Case Nos. 23CV423808 and 25CV470109 should not be consolidated, Plaintiff's motion to compel production of documents (sets 4 and 5), and Defendant's motion to compel production of ESI in either native or another reasonably usable format came on for hearing before the Court on September 4, 2025. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on September 3, 2025.

I. Consolidation of Case No. 25CV470109 with Case No. 23CV423808

Code of Civil Procedure Section 1048(a) provides: "When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." "A consolidation of actions does not affect the rights of the parties. The purpose of consolidation is merely to promote trial convenience and economy by avoiding duplication of procedure, particularly in the proof of issues common to both actions." (*Wouldridge v. Burns* (1968) 265 Cal. App. 2d 82, 86.) "Under the statute and the case law, there are thus two types of consolidation: a consolidation for purposes of trial only, where the two actions remain otherwise separate; and a complete consolidation or consolidation for all purposes, where the two actions are merged into a single proceeding under one case number and result in only one verdict or set of findings and one judgment." (*Hamilton v. Asbestos Corp., Ltd*. (2000) 22 Cal.4th 1127, 1147.) "Consolidation under Code of Civil Procedure section 1048 is permissive, and it is for the trial court to determine whether the consolidation is for all purposes or for trial only." (*Id*. at 1149.)

Plaintiff insists that Case Nos. 23CV423808 and 25CV470109 are so different that they are not even related. California Rule of Court, Rule 3.300 provides:

> (a) Definition of "related case" A pending civil case is related to another pending civil case, or to a civil case that was dismissed with or without prejudice, or to a civil case that was disposed of by judgment, if the cases:
>
> (1) Involve the same parties and are based on the same or similar claims;
>
> (2) Arise from the same or substantially identical transactions, incidents, or events requiring the determination of the same or substantially identical

questions of law or fact;

(3) Involve claims against, title to, possession of, or damages to the same property; or

(4) Are likely for other reasons to require substantial duplication of judicial resources if heard by different judges.

Plaintiff's contention that these cases are not related is untenable. The cases involve the same Defendant and a shared Plaintiff. The addition of Mr. Katsioulas as a Plaintiff in Case No. 25CV470109 does not change the analysis; Mr. Katsioulas is Archon Design's principal. The cases also both involve the relationship between the parties, TIES, and Plaintiffs' alleged ouster from Defendant. In fact, the amended complaint in Case No. 25CV470109 specifically references alleged litigation related activities in Case No. 23CV423808. Some of the allegations in Case No. 25CV470109 are also nearly identical to allegations in Case No. 23CV423808.

The trier of fact in each case will need to learn the history of the parties' relationship, what TIES is and how it relates to the parties, what GSA is, and who Plaintiffs are on their own and in relation to GSA. Discovery in Case No. 23CV423808 regarding these topics is obviously the same for Case No. 25CV470109. State courts are woefully underfunded; the courts are here to serve the people, but we must do so with efficiency so that tax payers' hard earned dollars are used wisely. In this context, given the substantial overlap between the first and second filed cases, it would be inappropriate to have separate trials for these two cases.

The Court thus finds that Case Nos. 23CV423808 and 25CV470109 should be consolidated for all purposes up through and including trial. The necessary adjustment to the trial schedule for Case No. 23CV423808 will prolong the final resolution of the parties' ongoing dispute, but will increase efficiency for the court and the parties overall.

II. Plaintiff's Motion to Compel Production of Documents (Sets 4 and 5)

Plaintiff's motion again seeks deep and extensive discovery into GSA's financial records. Plaintiff contends that while in its November 15, 2024 order, the Court ruled such records were not relevant to the parties' alleged May 2021 stipend and deferred compensation arrangement pled in SAC paragraph 12, it is relevant to the "amended agreement" pled in SAC paragraph 17.

SAC paragraph 12, which Plaintiff characterizes as the May 2021 agreement, alleges:

> By March 2021, Katsioulas had grown TIES to 26 corporate members and over 40 individual contributors validating the potential value to GSA and to Siemens which had a central role in the ecosystem, with several business units across the value chain. However, Katsioulas could not support leading and administering TIES by himself without resources and investment. In May 2021, Strittmatter agreed to pay Archon a stipend of $200 per hour for up to 40 hours per month and asked Katsioulas to supply monthly logs for the time he spent on TIES. Katsioulas and GSA agreed that any hours in excess of 40 hours per month logged in by Katsioulas would be rolled forward and that any accumulated payments to Archon for these "extra hours" would be deferred provided that Katsioulas continued leading the group and did not voluntarily leave. In exchange for leading the group, Strittmatter agreed to waive the minimal membership fee for Archon, and to admit Archon as a GSA member with the same benefits as other GSA members. Membership benefits include access to all GSA website content, market analyst reports, and free admission to GSA events. Starting in June 2021, GSA requested as part of the agreement that Katsioulas email Strittmatter detailed monthly logs of all the hours he worked and attached a PDF itemizing all the hours with a description of his activities for growing, leading, and administering the TIES Board and the group for the benefit of GSA. (A total of all hours logged is attached hereto as **Exhibit 1**). In September 2021, in reply to Katsioulas' submitting a log for August hours, including time over 40 hours, Strittmatter wrote back assuring Katsioulas that Archon's hours were "logged accordingly" and that GSA would keep an "estimated reserve" for payment.

SAC paragraph 17, which Plaintiff now characterizes as the amended agreement, alleges:

> In October 2022, Strittmatter praised Katsioulas for the TIES progress and confirmed that GSA would pay Archon the excess hours worked. He lauded

> Katsioulas' performance for the TIES accomplishments to date and told Katsioulas that the GSA had achieved record levels of increased revenues from subscriptions, and that GSA's budget for 2023 included Archon's monthly stipend. Strittmatter discussed with the GSA Finance committee (Bami Bastani and Mark Papermaster) the TIES progress and introduced Katsioulas to Bastami. Subsequently, Katsioulas met with Bastani, a GSA Board member from GlobalFoundries ("GF"), to discuss the value of TIES and how to promote TIES to the GSA Board. Bastani clearly saw the value of TIES, as he proposed presenting the TIES strategy to GF executives before promoting it to the GSA Board. Meanwhile, Strittmatter and Katsioulas estimated that the new plan for GSA and revenue streams including the significant contribution of the TIES platform, would generate over $2 million of additional revenues in 2023 from subscriptions, TIES sponsorships, membership price increases, reduction of member discounts, WLI sponsorships and post-COVID resumption of GSA's usual in-person events. The total GSA revenues for 2023 were projected to be over $7 million with over $500,000 in profit, ***without factoring in any TIES-related membership and sponsorship revenues or additional government funding related to the CHIPS Acts subsidies, which were projected to begin in late 2023 or early 2024. Strittmatter stated that if the projections of the were achieved, Archon would be paid additional compensation as commissions based on membership and sponsorship revenues related to the TIES 2023 plan.*** (Emphasis added.)

Tellingly, in 39 pages, the SAC does not refer to an amended agreement anywhere and does not refer to "additional compensation" anywhere other than paragraph 17. Instead, the SAC only refers to what Plaintiff now calls the May 2021 agreement. And although the SAC was the operative complaint during the November discovery conference when the Court made clear the extensive financial discovery Plaintiff sought was not relevant to his failure to be paid overtime claim, Plaintiff never once argued orally or in writing that SAC paragraph 17 alleged an amended agreement in a way that made this discovery relevant. Plaintiff never argued or represented there was an amended agreement during the extensive demurrer motion practice either. This is not surprising because paragraph 17 does not allege an agreement. And even if it did, the SAC further alleges the parties' relationship had soured and GSA was no longer supporting TIES as of March 2023. (See, e.g., SAC ¶24.) And this increased TIES related revenue was projected to begin in late 2023 and early 2024—after GSA already dropped TIES.

While the relevance analysis may change after consolidation, Plaintiff cannot hook its renewed request for extensive under-the-hood discovery from GSA on this single sentence in a 39 page SAC characterized as an amended agreement for the very first time only after the Court denied earlier requests for discovery.

Plaintiff's motion to compel is DENIED. Plaintiff is ordered to pay $3000 in sanctions, representing a reasonable amount of attorneys' fees to respond to this motion to compel, within 30 days of the court's service date of the formal order.

III. Defendant's Motion to Compel

Defendant's document requests included the following instruction: "DOCUMENT includes electronically stored information (ESI). ESI in these requests shall be produced in its/their native format." Plaintiff did not object to this requested format in its written responses.

Plaintiff made the following productions:

- **Production 1**
    - Responsive to RFP Set One
    - Produced on March 15, 2024
    - 11 undifferentiated bulk pdfs (AR 0000001–846)
    - Number of pages per pdf = 72, 53, 47, 97, 57, 46, 74, 42, 127, 166, 65

- **Production 2**
    - Responsive to RFP Set Two
    - Produced on January 15, 2025
    - 2 pdfs containing unannotated versions of documents previously produced with

annotations (AR 0000173-269 and AR 0270-326)

- o 18 new undifferentiated bulk pdfs (AR 0001001-044069)
- o Number of pages per pdf = 1803, 1968, 1782, 2974, 2378, 2783, 1248, 1047, 3294, 3505, 2690, 2199, 2387, 2210, 2571

- **Production 3**
  - o Responsive to RFP Set Two
  - o January 27, 2025
  - o 1 undifferentiated bulk pdf (AR 0000847-875)
  - o Number of pages per pdf = 29

Defendant contends these bulk PDF productions, although searchable, so not differentiate between documents and do not permit the level of review and searching available in Relativity, an electronic discovery tool. Plaintiff contends it does not have access to or familiarity with Relativity and breaking the bulk PDFs up into individual documents would be unduly burdensome. Plaintiff also argues its production is "reasonably useable", citing Code of Civil Procedure section 2031.280, which provides:

> (c) If a party responding to a demand for production of electronically stored information objects to a specified form for producing the information, or if no form is specified in the demand, the responding party shall state in its response the form in which it intends to produce each type of information.
>
> (d) Unless the parties otherwise agree or the court otherwise orders, the following shall apply:
>
> (1) If a demand for production does not specify a form or forms for producing a type of electronically stored information, the responding party shall produce the information in the form or forms in which it is ordinarily maintained or in a form that is reasonably usable.
>
> (2) A party need not produce the same electronically stored information in more than one form.

First, the fact that GSA may have these emails and attachments in its own servers is irrelevant. The mere fact of possession of certain documents by a party can be evidentiary, and GSA is entitled to know what documents *Plaintiff* has even if those documents might overlap with what GSA has.

Next, as the Court explained during the August 21, 2025 discovery conference, it is problematic that the PDFs are lumped together in a way that makes it difficult to know when a document ends and begins. Despite the Court expressly flagging this concern, Plaintiff does not address it other than to represent that it should be easy to figure it out.

Plaintiff complains that Defendant seeks to shift the discovery burden to Plaintiff, but this is Plaintiff's document production, and it is Plaintiff's burden to make a reasonably usable document production. If it is, as Plaintiff contends, easy to figure out the breaks in the documents, why is it that Plaintiff cannot break the bulk PDFs into the individual documents and produce the native Excel spreadsheets?

This is not about Defendant being able to use the Relativity platform for document review. While Defendant may find this to be industry standard, there is a wide variety of production formats parties use depending on case and law firm size. If Defendant wanted a Relativity production, there should have been an explicit meet and confer and agreement on that format before either party produced documents.

However, the very well known problem with non-native Excel spreadsheets and the inability to know when a document ends and begins or what is an email attachment versus a stand-alone document is actual and real. Defendant's proposed comprise therefore makes sense, as it does not require a specialized platform, permits Plaintiff to produce in PDF form, and enables GSA to understand what Plaintiff believes to be one document, attachments, or standalone non-email documents.

Defendant's motion is accordingly GRANTED. Within 30 days of the court's service date of this formal order, Plaintiff shall:

1. Reproduce its produced documents using the same Bates numbers as previously used by Plaintiff in its bulk pdf productions;

2. Produce each document as a separate Bates-stamped pdf so that GSA can tell where the document begins and where it ends. Emails with attachments will be produced in correct

bates-stamped order reflecting the document "family."

3. Produce Excel spreadsheets in both pdf (bates stamped) and native format with the native format files named with the corresponding beginning bates number.

This is a dispute that should have been resolved in meet and confer. Defendant raised a legitimate concern about knowing when a document ends and begins and not being able to read non-native Excel files and attempted to come up with a compromise solution. It does not appear in this record that Plaintiff proposed any alternatives but instead dug into its position that the production was fine as it was. That is unfortunate.

However, this was a simple issue, thus the Court does not find the amount of fees sought appropriate. Plaintiff is ordered to pay $4,200 in sanctions to Defendant within 30 days of the court's service date of this formal order.

IT IS SO ORDERED.

Date: ____________________ ____________________________________

Hon. Evette D. Pennypacker
Santa Clara Superior Court Judge

Line 6

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA

WELLS FARGO BANK, N.A., Plaintiff, v. ANNIE KIM, an individual, Defendant.	Case No. 24CV443308 **ORDER DEEMING MATTERS IN REQUESTS FOR ADMISSION ADMITTED**

Wells Fargo Bank, N.A's motion to deem matters in requests for admission admitted originally came on for hearing before the Court on June 26, 2025. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on June 25, 2025. Wells Fargo appeared, reported that the parties were in settlement discussions, and requested that the hearing on this motion be continued, which request the Court granted. The motion is now again on for hearing before the Court for September 4, 2025 at 9 a.m. in Department 6. The file contains no indication that this matter has resolved. Accordingly, the Court reissues its tentative ruling.

Wells Fargo Bank, N.A's motion for order that matters in request for admission of truth of facts be admitted is GRANTED. A notice of the motion with this hearing date was served on Defendant by United States and electronic mail on January 29, 2025. Defendant failed to file an opposition. "[T]he failure to file an opposition creates an inference that the motion or demurrer is meritorious." (*Sexton v. Super Ct.* (1997) 58 Cal.App.4th 1403, 1410.) There is also good cause to grant this motion.

Plaintiff served requests for admission (set one) by U.S. mail on December 11, 2024. To date, Defendant has served no responses. Plaintiff followed up with Defendant by letter dated January 15, 2025, providing additional time for responses. Defendant still did not respond.

A party served with requests for admission must serve a response within 30 days. (Code of Civ. Pro. §2033.250.) When a party fails to respond—even in the face of a motion to have the matters in the requests for admission deemed admitted—as Defendant has done here, the Court must order the requests for admission deemed admitted. (Code of Civ. Pro. §2033.280(c); *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 775-776.) Such a "deemed admitted" order establishes that the nonresponding party has responded to the requests for admission by admitting the truth of the matters contained in the requests. (*Id.*)

Accordingly, the matters set forth in Plaintiff's first set of requests for admission to Defendant are deemed true.

IT IS SO ORDERED.

Date: ______________________ ________________________________

Hon. Evette D. Pennypacker
Santa Clara Superior Court Judge

Line 7

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

BERKSHIRE HATHAWAY HOMESTATE COMPANIES, Plaintiffs, v. NIKNAM NICKERAVISH, an individual, NIK'S AIRCRAFT, LLC, and DOES 1 to 20, inclusive, Defendants.	Case No. 24CV443609 **ORDER DENYING DEFENDANT NIK'S AIRCRAFT LLC'S MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO REQUESTS FOR ADMISSION (SET ONE), FORM INTERROGATORY NOS. 1.1 AND 17.1, AND REQUESTS FOR PRODUCTION OF DOCUMENTS (SET ONE)**

Defendant Nik's Aircraft, LLC motion to compel Plaintiff Berkshire Hathaway Homestead Companies to provide verified responses, without objections, to Nik's Aircraft, LLC 's Request for Admissions (Set One), Form Interrogatories 1.1 and 17.1 (Set Two), and Request for Production of Documents (Set One) and for $7,551 in sanctions came on for hearing before the Court on September 4, 2025. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on September 3, 2025.

Defendant Nik's Aircraft serviced a plane, and the plane crashed just minutes after takeoff. Berkshire Hathaway seeks reimbursement for worker's compensation payments it made to the pilot who was severely injured. Berkshire Hathaway claims Defendants were responsible for using fuel during testing and using that fuel led to the crash. Defendants assert the crash was entirely due to pilot error. However, the dispute before this Court on this motion relates only to discovery.

Defendants served requests for admissions (set one), form interrogatories (set two), and requests for production (set one) on Berkshire Hathaway on January 14, 2025. After receiving extensions, Berkshire Hathaway served responses with a verifications "pending signatures" on March 10, 2025. With a response to Defendants' March 14, 2025 meet and confer letter, Berkshire Hathaway served further responses to these discovery requests, each verified by a Berkshire Hathaway senior paralegal.

Defendants move to compel because (1) Berkshire Hathaway's original responses to these discovery requests were served without a verification and (2) the blank verification form that came with the discovery responses indicated a Berkshire Hathaway senior paralegal would sign the verification in part on information and belief. Defendants make reference to Plaintiff's statement regarding "substantial compliance" and to Plaintiff's objections, however, Defendants do not identify any missing information. Nor do Defendants address the plain fact that Plaintiff produced verifications shortly after it served its initial responses. Defendants' reply is silent on that issue, instead focusing on the declarant.

First, the fact that Berkshire Hathaway filed its opposition late does not mean the Court should not consider it. The Court has discretion to consider late filed papers. (*Gonzalez v. Santa Clara County Dep't of Social Servs.* (2017) 9 Cal.App.5th 162, 168.) And, where a party provides a substantive response to a late filing, the party waives all defects in service. (*Moofly Productions, LLC v. Favila* (2020) 46 Cal. App. 5th 1, 10.) Defendants filed a reply brief and declaration. The Court will consider the late opposition. Although the parties are cautioned to comply with all applicable rules.[1]

Next, read as a whole, the Court is perplexed as to what Defendants are—or ever were—asking for the Court to order here. Plaintiff did produce verifications for this discovery even before Defendants filed this motion. And Plaintiff offered to meet and confer and even to locate another person to verify the responses if that is what Defendants were concerned about. It does not appear that Defendants ever took Plaintiff up on this offer.

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[1] Defendants' apology to the Court for filing a single motion to compel is appreciated but unnecessary. It is actually the California Rules of Court and Code of Civil Procedure that require separate motions. Where the issues are clear, this Court prefers the efficiency of a single motion.

Defendants' reply does not address Plaintiff's argument that corporate entities are treated differently than individuals when it comes to verifying responses. (Plaintiff's Opp. at 5-6.) If Defendants want to know the source of the information contained in Plaintiff's responses, Code of Civil Procedure sections 2030.250(b), 2031.250(b), and 2033.240(b) provide a method for doing that: "[i]f the officer or agent signing the response on behalf of that party is an attorney acting in the capacity for a party, the party waives any lawyer-client privilege and any protection for work product under Chapter 4 (commencing with Section 2018.010) during any subsequent discovery from that attorney concerning the identity of sources of the information contained in the response."

Defendants also fail to articulate anything that is missing from Plaintiff's responses. If Defendants are frustrated that they did not get information from the pilot or the pilot's employer, that is because neither the pilot nor the pilot's employer are parties to this case. To obtain information from the pilot and the pilot's employer, Defendants must subpoena those third parties. (*Unzipped Apparel, LLC v. Bader* (2007), 156 Cal.App.4th 123, 124.)

In sum, the Court finds this motion was made without substantial justification and adequate meet and confer. Code of Civil Procedure section 2023.020 states: "the court *shall* impose a monetary sanction ordering that any party or attorney who fails to confer as required pay the reasonable expenses, including attorney's fees, incurred by anyone as result of that conduct." (Emphasis added; see also *Moore v. Mercer* (2016) 4 Cal.App.5th 424, 448 (failure to participate in meet and confer process in good faith is independent discovery abuse for which sanctions are authorized by statute).) This monetary sanction is mandatory regardless of how the court rules on the offending party's motion. (Code Civ. Proc. §2023.020.) However, while Plaintiff asks for $3,475 in attorneys' fees and costs for opposing this motion, Plaintiff fails to submit an attorney declaration or other evidence to support this amount. Thus, the Court cannot award monetary sanctions against Defendants.

Defendants' motion to compel and for sanctions is DENIED.

IT IS SO ORDERED.

Date: ______________________ ______________________________

Hon. Evette D. Pennypacker
Santa Clara Superior Court Judge

Line 8

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

TECH KY, an individual, Plaintiff, v. 24 HOUR FITNESS USA, LLC, a California Limited Liability Company; JESUS RAMIREZ HERNANDEZ, an individual; and DOES 1 to 100, inclusive, Defendants.	Case No. 24CV444162 **ORDER GRANTING MOTION TO COMPEL**

Plaintiff TECH KY's motion to compel Defendant Jesus Ramirez Hernandez to serve full and complete verified answers, without objection, to Plaintiff's form interrogatories (set one) and for $1,500 in sanctions came on for hearing before the Court on September 4, 2025. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on September 3, 2025, 2025.

Plaintiff served form interrogatories (set one) on Defendant on February 21, 2025. To date, Defendant has served no responses. In fact, Defendant did not oppose this motion despite having been served by U.S. mail with the notice of motion and motion on July 22, 2025. "[T]he failure to file an opposition creates an inference that the motion [] is meritorious." (*Sexton v. Super Ct.* (1997) 58 Cal.App.4th 1403, 1410.)

A party responding to interrogatories must respond in writing, under oath separately to each interrogatory with an answer that contains the information sought, an exercise of the party's option to produce writings from which the answer can be determined, or an objection to the interrogatory. (Code Civ. Pro. §2030.210(a).) The responding party must make a reasonable, good faith effort to obtain information to provide a response and generally may not respond to the interrogatory by simply stating it cannot respond. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 406; Code Civ. Pro. §2030.210(c).)

Where, as here, a responding party fails to timely respond to Interrogatories, the responding party waives all objections to the interrogatories, including objections based on privilege or on the protection for work product. (Code of Civ. Proc. §2030.290(a).) Where a party demonstrates the failure to respond was due to mistake, inadvertence, or excusable neglect and has since served a response, the court may set aside the waiver. (Code of Civ. Proc. §2030.290(a)(2).) Defendant has made no such showing here.

Code of Civil Procedure section 2030.290(c) provides: "The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

Defendant is therefore ordered to serve verified code-compliant responses without objections and to pay Plaintiff $825 in attorneys' fees within 20 days of service of this final order.

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IT IS SO ORDERED.

Date: ______________________ __________________________________

Hon. Evette D. Pennypacker
Santa Clara Superior Court Judge

Line 10

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA

AMERICAN EXPRESS NATIONAL BANK, Plaintiff, v. MYRNA MILANO, an individual, Defendant.	Case No. 24CV454785 **ORDER REGARDING MOTION TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT**

Defendant Myrna Milano's motion to set aside default and default judgment came on for hearing before the Court on September 4, 2025. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on September 3, 2025.

Plaintiff filed this lawsuit on December 23, 2024 seeking $10,169.80 in damages. Plaintiff filed a proof of service with the Court on January 8, 2025 which states Defendant was personally served with the summons and complaint on January 8, 2025. Under Evidence code section 647, a registered process server's declaration of service establishes a presumption that the facts stated in the declaration are true. (*Rodriguez v. Cho* (2015) 236 Cal.App.4th 742, 750.) Defendant does not dispute this service.

Default was entered against Defendant on May 13, 2025, and a clerk's judgment for $9,215.80 in damages and $442.61 in costs was entered against Defendant on May 16, 2025.

Defendant seeks to have the default and default judgment set aside on the basis of inadvertence, surprise, or excusable neglect.

Pursuant to Code of Civil Procedure section 473(b), "[t]he court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken."

Defendant's motion was filed on July 29, 2025, just months after default and default judgment were entered against her, thus the motion is timely. Defendant does not attach a proposed answer or argue that she has valid defenses to the claim. Instead, Defendant argues:

> After the filing of the Complaint and service of process on Defendant, and on February 8, 2025, Plaintiff and Defendant negotiated a settlement amount of $7,632 00 to be paid in monthly installments of $318.00. Defendant has been paying regularly and timely for three (3) months. There should not have been a request for default judgment as the parties have already settled the matter. Plaintiff should have filed a NOTICE OF SETTLEMENT instead of filing a request for default judgment.
>
> For the aforementioned reasons, Defendant requests set aside of the default, and if applicable default judgment entered against her and that order the Plaintiff to file a NOTICE OF SETTLEMENT.

Plaintiff argues Defendant never returned the signed stipulation regarding settlement and did not file an answer, obtain a fee waiver, or pay the court's first appearance fee as required in the first paragraph of that stipulation, which permits Plaintiff to continue with litigation even if Defendant is making payments where those steps are not taken. Defendant responds that the correct stipulation was never sent to her.

The Court carefully studied the parties' submissions, including the attachments to Defendant's reply. Those attachments repeatedly inform Defendant that if the stipulation is not signed, default could be entered. Defendant also makes clear that she will not sign a document she believed to be wrong—even after being counseled by the debt collector to arrange to make the payments according to the schedule in the stipulation by saving and to sign it to avoid default.

In sum, the Court does not see a basis to set aside default or default judgment on this record—even if Defendant has been making payments. Defendant did not actually enter the settlement agreement and, in fact, disputed the settlement terms. Defendant does not include a proposed answer with her motion as required by statute and admits that she owes the debt.

Defendant's motion is accordingly DENIED.

IT IS SO ORDERED.

Date: ______________________

____
Hon. Evette D. Pennypacker
Santa Clara Superior Court Judge

Line 11

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

DISH WIRELESS L.L.C., Petitioner, v. ADVANCED WIRELESS & LOGISTICS, Respondent.	Case No. 24CV454855 **ORDER GRANTING MOTION FOR ATTORNEYS' FEES**

Petitioner DISH Wireless L.L.C.'s motion for $8,808.08 in attorneys' fees pursuant to Civil Code section 8488 came on for hearing before the Court on September 4, 2025. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on September 3, 2025, 2025.

In an action to release property from a mechanics lien, Civil Code section 8488 (c) provides that "[t]he prevailing party is entitled to reasonable attorney's fees." Here, DISH obtained an order releasing property from a mechanics lien on May 1, 2025. DISH is plainly the prevailing party. DISH now seeks $8080.08 in attorneys' fees.

A notice of motion with this hearing date and time was served on Respondent's agent for service of process by U.S. mail on May 8, 2025. Defendant failed to file an opposition. "[T]he failure to file an opposition creates an inference that the motion [] is meritorious." (*Sexton v. Super Ct.* (1997) 58 Cal.App.4th 1403, 1410.)

This case was leanly staffed, and the chart of charges reflect an effort to efficiently use resources and leverage work in related cases. Thus, the Court finds the hours billed reasonable. The hourly rates charged are also reasonable for this area, case type, and level of attorney experience.

Petitioner's motion for $8,808.08 in attorneys' fees pursuant to Civil Code section 8488 is accordingly GRANTED.

IT IS SO ORDERED.

Date: ______________________ ______________________________________

Hon. Evette D. Pennypacker
Santa Clara Superior Court Judge

Line 12

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

BRANDI DAVIS and DELICA AMEMOWOTO, individually and as Heirs and Successors-in-Interest to PEGGY DAVIS, Deceased, Plaintiffs, v. CIRBY HOLDINGS, LLC dba MOUNTAIN VIEW HEALTHCARE CENTER; and DOES 1-50, Defendants.	Case No. 25CV460115 **ORDER GRANTING DEFENDANT'S PETITION TO COMPEL ARBITRATION**

Cirby Holdings, LLC dba Mountain View Healthcare Center's petition to compel arbitration first came on for hearing before the Court on August 5, 2025. The Court issued a tentative ruling ordering the following:

1. The hearing on Mountain View's petition to compel arbitration is continued to September 4, 2025 at 9 a.m. in Department 6;
2. On or before August 22, 2025 Mountain View is ordered to submit a further sworn statement describing the process by which the Arbitration Agreement was electronically signed; and
3. Plaintiffs may submit a response to Mountain View's further statement on or before August 29, 2025.
4. The parties' further statements shall be filed, served, and emailed to

Department6@scscourt.org.

No party appeared to contest that tentative ruling, and on August 22, 2025, Defendant filed the Supplemental Declaration of Bryant Yerena in Support of Defendant's Petition to Compel Arbitration. Plaintiff did not submit any further materials. Now having a complete record, the Court issues its final ruling.

I. Alleged Facts

Brandi David and Selica Amemowoto, individually and as heirs and successors-in-interest to Peggy Davis, who is deceased, brought this action on February 28, 2025 against Cirby Holdings, LLC d/b/a Mountain View Healthcare Center for (1) negligence, (2) violations of the elder and dependent adult civil protection act, (3) violations of resident rights, and (4) wrongful death.

Plaintiffs allege Mountain View failed to adequately care for Ms. Davis by failing to implement safeguards to protect Ms. Davis from falls, to take any reasonable action regarding feeding Ms. Davis, to provide any reasonable care regarding Ms. Davis's significant lung condition and sleep apnea, and to adequately staff and supervise Ms. Davis's care. Plaintiffs further allege:

> On or about April 30, 2024, Ms. DAVIS's daughter arrived to find her mother disoriented and hallucinating and she called 911 for emergency services due to significantly low oxygen levels. Ms. DAVIS's oxygen levels were repeatedly and dangerously low leading up to April 30, 2024. Ms. DAVIS's family was never advised of her deteriorating change in condition. On or about April 30, 2024, Ms. DAVIS was transferred to Stanford Healthcare in Stanford, California. At that time she was diagnosed with acute respiratory pneumonia, a frontal brain bleed, lung failure and she was severely dehydrated and malnourished. Ms. DAVIS was never able to recover and she passed away on May 10, 2024 from acute hypoxic respiratory failure and aspiration pneumonia. (Complaint, ¶10.)

Mountain View asserts Ms. Davis's daughter, Brandi Davis, signed an arbitration agreement in both her individual and representative capacity that requires these claims be arbitrated. The arbitration agreement is set out in a separate document titled "ABITRATION AGREEMENT" and states at the top: “Residents shall not be required to sign this arbitration agreement as a condition of admission to this facility.” The agreement provides:

> Article 1. It is understood that any dispute as to medical malpractice, that is as to whether any medical services rendered under this contract were unnecessary or unauthorized or were improperly, negligently, or incompetently rendered, will be determined by submission to arbitration as provided by California law, and not by a lawsuit or resort to court process except as California law provides for judicial review of arbitration proceedings. Both parties to this contract, by entering into it, are giving up their constitutional right to have any such dispute decided in a court of law before a jury, and instead are accepting the use of arbitration.
>
> Article 2. It is further understood that any dispute between Resident and Cirby Holdings, LLC dba Mountainview Healthcare Center, its owners, operators, officers, directors, administrators, staff, employees, agents, and any management and administrative services company and consulting vendors, and all related entities and individuals, their staff, personnel, employees, owners, officers, directors, members, and agents that provide services to the Facility that relates to the provision of care, treatment and services the Facility provides to the Resident, (collectively referred to herein as "Facility”), including any action for injury or death arising from negligence, intentional tort and/or statutory causes of action (including all California Welfare and Institutions Code sections and Health and Safety Code section 1430), will be determined by submission to binding arbitration and not by lawsuit or resort to court process except as California law provides for judicial review of arbitration proceedings. The parties to this agreement are giving up their Constitutional right to have all disputes decided in a court of law before a jury, and instead are accepting the use of binding arbitration. By signing this agreement, the parties waive their right to commence and/or be a party to any

class or collective action in any court against the other party relating in any manner to the Resident's residency at the Facility. Further, the parties waive their right to commence or be a party to any group, class, or collective action claim in arbitration or any other forum.

Article 3. The execution of this Arbitration Agreement is not a precondition to receiving medical treatment, care, services and/or for admission to the Facility and is not a requirement to continue to receive medical treatment, care and services at the Facility.

Article 4. This Agreement shall be binding for any and all disputes arising out of the Resident's residency at the Facility, except for disputes pertaining to collections or evictions. ***This Agreement is binding on all parties, including the Resident's representatives, executors, family members, and heirs who bring any claims individually or in a representative capacity. The Resident's representatives, agents, executors, family members, successors in interest and heirs who execute this Agreement below on the signature line are doing so not only in their representative capacity for the Resident, but also in their individual capacity and thus agree that any claims brought individually by any such representatives, agents, executors, family members, representatives, successors in interest and heirs are subject to binding arbitration.*** This Agreement may be rescinded by written notice within thirty (30) days of signature.

Article 5. Retroactive Effect. It is agreed by and between the parties hereto that this Agreement covers services rendered before the date this contract is signed, thus making this contract effective as of the date of the Resident's first admission to the Facility.

Article 6. The parties to this Agreement agree that California substantive law, including California Code of Civil Procedure §667.7 and Civil Code §§3333.1 -3333.2 applies to any and all claims arising out of the care, treatment and services provided to the Resident by the Facility, unless otherwise required by law. ***California Code of Civil Procedure §1281.2(c) is excluded from this Agreement as the parties mutually desire to have any and all disputes submitted to binding arbitration and do not want any claims not subject to arbitration to impede any and all other claims from being ordered to binding arbitration.*** The expenses and fees of the arbitrator shall be apportioned equally among all parties except as otherwise required by law.

Article 7. This Agreement relates to the Resident's admission to the Facility, and the Facility, among other things, participates in the Medicare and/or Medi-Cal programs and/or procures supplies from out of state vendors. The parties, therefore, agree that the underlying admission to the Facility involves interstate commerce. Accordingly, ***this Agreement is to be governed by the Federal Arbitration Act and the procedural rules set forth in the Federal Arbitration Act (9 U.S.C. Sections 1-16) shall govern any petition to compel arbitration and the selection of an arbitrator, should the parties be unable to mutually agree upon the appoint of a single neutral arbitrator****.* The arbitration shall be venued in a location convenient for all parties, normally the county where the Facility is located.

Article 8. If any provision in this Agreement is held invalid, such holding shall not impact the validity of the remaining provisions of this Agreement. The Resident and/or the person executing this Agreement certifies that he/she has read this Agreement, it has been explained in a manner he/she understands, has been given a copy of this Agreement, understands this Agreement, and affirmatively represents that he/she is duly authorized, by virtue of the Resident's consent, instruction and/or durable power of attorney, to execute this Agreement and accept its terms on behalf of the Resident and individually and acknowledges that the Facility is relying on the aforementioned certification. (Bold, italics added.)

Above the signature line, the agreement states in bold, red, all caps: “NOTICE: BY SIGNING THIS CONTRACT YOU ARE AGREEING TO HAVE ANY ISSUE OF MEDICAL MALPRACTICE DECIDED BY NEUTRAL ARBITRATION AND YOU ARE GIVING UP YOUR RIGHT TO A JURY OR COURT TRIAL. SEE ARTICLE 1 OF THIS CONTRACT.” Below the signature line, the agreement states: “Signature on behalf of Resident and as an Individual”.

Brandi filed a declaration after Mountain View submitted its reply brief, swearing under oath: “The signature on the arbitration agreement attached as Exhibit B to the Declaration of Bryant Yarena is not mine and is electronic. I never signed any arbitration agreement in connection with my mother’s stay at Mountain View Healthcare and I specifically told a representative from Mountain View that I would not sign an Arbitration Agreement.”

Cirby Holdings submits a supplemental declaration from their Admissions Director of Mountain View Healthcare Center, which declaration explains the process by which Brandi signed the arbitration agreement. Defendant uses PointClickCare (“PCC”) which utilizes OneSpan software to obtain and store electronic signatures. The audit train for the arbitration agreement here indicates that the email address Davisbrandi970@yahoo.com was used by the signer to access the secure link through which the document was assigned. Attached to the Supplemental Yerna Declaration is the signature workflow for PCC, which provides the following further details for obtaining secure, authentic signatures:

1. Invitation & Access

- When a document in PCC Document Manager is sent for signature, OneSpan generates a secure email link that is unique to the signer.
- This link is tokenized (contains a unique encrypted identifier) and cannot be reused or forwarded without invalidating the chain of custody.
- The signer receives the email directly from OneSpan’s secure system (not PCC), ensuring origin authenticity.

2. Signer Authentication

- The recipient must access the document only through the secure email link tied to their identity.

3. Signature & Binding

- Once inside OneSpan, the signer applies their electronic signature by clicking/tapping in the designated fields.
- At this point, OneSpan applies a digital certificate and cryptographic seal binding the signature to the document.

4. Audit Trail

- A comprehensive audit log is created, showing:
    - o Date/time of secure email delivery.
    - o IP address and device information used to access the link.
    - o Actions taken (opened, reviewed, signed).
- This audit log is stored alongside the signed document in PCC Document Manager.

5. Document Finalization

- Once all required signatures are complete, the document is sealed and rendered read-only.
- Any attempt to alter the document post-signature invalidates the cryptographic seal and is immediately detectable.

II. Legal Standard

In a motion to compel arbitration, the Court must determine "(1) whether there is a valid agreement to arbitrate between the parties; and (2) whether the dispute in question falls within the scope of that arbitration agreement." (*Bruni v. Didion* (2008) 160 Cal. App. 4th 1272, 1283 (citations omitted).) "The petitioner bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.] In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination. [Citation.]" (*Bruni,* 160 Cal. App. 4th at 1282 (citations omitted).)

Code of Civil Procedure section 1281.2 states: "the court shall order a matter to arbitration if it determines that there is an agreement to arbitrate and (1) the agreement has not been waived or (2) the agreement has not been revoked." (See also *Cinel v. Barna* (2012) 206 Cal.App.4th 1383, 1389.) "[A] party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense." (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232

Cal.App.4th 836, 842.)

III. Analysis

First, the gravamen of the complaint is that Mountain View failed to meet the standard of care when Ms. Davis was resident there. Plaintiffs' attempt to characterize their claims otherwise cannot avoid this fact. (*See Unruh-Haxton v. Regents of University of California* (2008) 162 Cal.App.4th 343, 353; *Holland v. Silverscreen Healthcare, Inc.* (2024) 101 Cal.App.5th 1125, 1133-1134.)

Next, "[i]n *Ruiz v. Podolsky,* [2010] 50 Cal.4th 838 (*Ruiz*), the Supreme Court held all heirs in wrongful death actions are bound by arbitration agreements under Code of Civil Procedure section 1295, when the language of the agreement manifests an intent to bind the heirs. (*Ruiz*, at p. 841; *Holland v. Silverscreen Healthcare, Inc., supra*, 101 Cal.App.5th 1125, 1132 (*Holland*) ["*Ruiz* concluded 'that section 1295, construed in light of its purpose, is designed to permit patients who sign arbitration agreements to bind their heirs in wrongful death actions'"].)" (*Enmark v. KF Community Care, LLC* (2024) 105 Cal.App.5th 463, 476.) The language in the arbitration agreement here unequivocally places this case within the *Ruiz* holding.

The arbitration agreement also makes clear in Article 4 and again at the signature line that Brandi was signing both on behalf of her mother and in her individual capacity. Thus, Brandi's arguments in opposition that her own claims are not subject to arbitration fails.

Code of Civil Procedure section 1281.2 is inapplicable given the parties' express agreement to exclude its application at the time the arbitration agreement was formed. Agreements to arbitrate are contracts subject to the same tools of interpretation as all contracts. Where the parties enter an express agreement related to arbitration, the courts are bound to enforce it. (*See Gloster v. Sonic Automotive, Inc.* (2014) 226 Cal.App.4th 438 (parties' arbitration agreement provided "the court may not refuse to enforce this arbitration agreement and may not stay the arbitration proceeding despite the provisions of California Code of Civil Procedure § 1281.2[, subdivision] (c).").)

This leaves Brandi's argument that the signature on the arbitration agreement is electronic, not hers, and she expressly told Mountain View that she would not sign an arbitration agreement. As noted in the Court's prior ruling, the Court finds it extremely suspect that Brandi failed to make this representation in her opposition. If she never signed this agreement and "specifically told a representative from Mountain View that [she] would not sign an Arbitration Agreement" this seems like it would be the very first defense to arbitrating these claims. But Brandi did not make this argument or even allude to it in her opposition. Instead, Brandi focused on more technical legal arguments regarding individual vs. representative capacity and the characterization of the asserted claims. In fact, at page 2 of Plaintiffs' opposition, Plaintiffs state: "***March 15, 2024: Mountain View presented an arbitration agreement to Brandi Davis, which she signed as attorney-in-fact for her mother***." (Emphasis added.)

However, Mountain View bears the burden to "prove the authenticity of the signature on the arbitration agreement. (*See Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842 [181 Cal. Rptr. 3d 781] (Ruiz).) A proponent seeking to authenticate an electronic signature must show the electronic signature "'was the act of the person,'" which could be shown "'in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable.'" (*Id.* at p. 843, italics omitted; *see* Civ. Code, § 1633.9, subd. (a).) For example, a party may present evidence that the signatory was required to use a unique, private login and password to affix the electronic signature, along with evidence detailing the procedures the person had to follow to electronically sign the document and the accompanying security precautions. (*Espejo*, *supra*, 246 Cal.App.4th at p. 1062.)" (*Garcia v. Stoneledge Furniture LLC* (2024) 102 Cal. App. 5th 41, 53.)

Mountain View's supplemental declaration adequately meets this requirement. Brandi has no response. The Court finds Brandi did sign the arbitration agreement.

Mountain View's motion to compel arbitration is accordingly GRANTED.

The November 26, 2025 case management conference is VACATED. A status conference regarding the arbitration is set for March 26, 2026 at 10:00 a.m. in Department 6.

IT IS SO ORDERED.

Date: ______________________ ______________________________

Hon. Evette D. Pennypacker
Santa Clara Superior Court Judge